

STATE OF MICHIGAN
IN THE 14TH CIRCUIT COURT FOR THE COUNTY OF MUSKEGON – FAMILY
DIVISION

Case No.: 2024-001507-DC

Hon. Jenny L. McNeill

MOTION TO MODIFY CUSTODY, PARENTING TIME, AND CHILD SUPPORT

FILED BY PLAINTIFF, ANDREW JAMES PIGORS

NOW COMES the Plaintiff, Andrew James Pigors, in pro per, and pursuant to MCL 722.27(1)(c), MCR 3.211(C), and *Vodvarka v Grasmeyer*, 259 Mich App 499 (2003), respectfully moves this Honorable Court to modify the current orders concerning legal custody, physical custody, parenting time, and child support. This motion is compelled by material and substantial changes in circumstances and a documented campaign of parental alienation, procedural harassment, and financial obfuscation by Defendant, Emily Watson, in direct violation of Plaintiff's constitutional rights, statutory parenting rights, and Lincoln David Watson's best interests under MCL 722.23.

I. LEGAL STANDARD

Pursuant to MCL 722.27(1)(c), a custody modification requires the moving party to establish proper cause or a change in circumstances. The standard was clarified in *Vodvarka v Grasmeyer*, which mandates that the change be of sufficient magnitude to have a material effect on the child's well-being.

Once this threshold is met, the court must evaluate the statutory best interest factors under MCL 722.23(a)–(l). The burden of proof shifts depending on the custodial environment: a clear and convincing evidence standard applies when modification would alter the established custodial environment (ECE), and a preponderance of the evidence applies otherwise.

II. GROUNDS FOR MODIFICATION

A. Parental Alienation & Withholding of Parenting Time

Defendant has intentionally and repeatedly denied Plaintiff his lawful parenting time and access to his son, including:

- Withholding the child from March 26 through May 2, 2024, despite a standing informal parenting time agreement and Lincoln’s birthday in 2024 and 2025; Showing a pattern.
- Failing to respond through the court-ordered AppClose application, or replying with deliberate hostility (Exhibits A & R), evidencing an intent to obstruct lawful communication and co-parenting.

These behaviors constitute parental alienation, in violation of MCL 722.23(j) and (k), and are actionable under MCL 552.641(a), MCL 552.644, and MCR 3.211(C).

B. Procedural Harassment & Weaponization of PPO

Emily Watson has systematically misused the Personal Protection Order (PPO) process and law enforcement channels to undermine Plaintiff’s parental rights and manipulate judicial proceedings. This includes:

- Eight (8) frivolous police reports filed with no criminal findings;
- Six (6) show cause hearings, including two contempt findings, culminating in a 10-day criminal contempt sentence on February 28, 2025;
- During the contempt hearing, Judge McNeill refused to admit the exonerating police report dated November 15, 2024 (Exhibit B), and Plaintiff was silenced three times on record—violating procedural due process under the Michigan Constitution Article 1 § 17 and MCR 3.606.

This pattern reflects not only alienation, but a calculated abuse of judicial resources, warranting protective intervention and sanctions under MCR 1.109(E)(5).

C. Established Custodial Environment (ECE) with Plaintiff

Despite the court’s reduction of Plaintiff’s parenting time due to Defendant’s PPO manipulations, Plaintiff has consistently provided care, shelter, and emotional support for Lincoln. Evidence of ECE includes:

- Week-on/week-off arrangement sustained until March 2024;
- Plaintiff’s engagement in daily routines, bedtime care, and health supervision;
- Independent professional affirmations (Exhibit G) verifying the father–son bond.

This ECE qualifies Plaintiff for either primary physical custody or 50/50 joint custody, especially where Defendant’s conduct demonstrates an unwillingness to foster a positive relationship with the other parent—a direct breach of MCL 722.23(j) and case law in *Lieberman v Orr*, 319 Mich App 68 (2017).

D. Economic Suppression and Material Nondisclosure

Defendant's obstruction has imposed severe financial consequences on Plaintiff:

- Over 20 hearings in 12 months, resulting in job loss;
- Denial of transitions that forced Plaintiff to miss critical work obligations;
- Defendant failed to disclose:
 - Rental income from Cody Watson;
 - Full salary and benefits from Kent County Prosecutor's Office (Exhibit P/X);
 - Child support received from Austin Muratori;
- Plaintiff continues to pay \$88/week in child support and \$95/week in insurance—including for dependents he is not legally responsible for.

This satisfies the standard for modification under MCL 552.517(1) and justifies a full recalculation under Michigan Child Support Formula Manual (2021) and MCR 3.206(C).

III. RELIEF REQUESTED

WHEREFORE, Plaintiff respectfully requests that this Honorable Court:

1. Modify Custody:
Award joint legal and physical custody to both parents, or alternatively, award primary physical custody to Plaintiff, based on Plaintiff's ECE and Defendant's proven pattern of alienation, harassment, and interference. See MCL 722.23(a)–(k) and Vodvarka.
2. Expand Parenting Time:
Grant make-up parenting time for all withheld periods:
 - March 26–May 2, 2024;
 - Easter Sunday 2025;
 - Lincoln's birthday (2024 and 2025);
 - Plus five (5) consecutive weekends in addition to standard parenting time.Pursuant to MCL 552.642–.645.
3. Modify Child Support:
Recalculate based on Defendant's true earnings and financial disclosures, and issue:
 - Credit for insurance overpayments;
 - Adjustment for Defendant's dual-source income and support received;
 - Reassessment of proportional responsibility.
4. Enter Sanctions:
Issue monetary sanctions and/or attorney fee award under MCR 1.109(E)(5) and MCL 552.644 for:

- Filing baseless police reports;
 - False PPO accusations;
 - Discovery violations and bad faith litigation tactics.
5. Restrictive and Protective Orders:
- Prohibit Defendant from initiating future PPO or contempt actions without a verified affidavit and corroborating documentation;
 - Direct FOC to supervise co-parenting compliance pursuant to MCL 552.517d.
6. Other Relief:
- Take judicial notice of Exhibits A–R, X, H, P, G, I under MRE 201(b) and MCR 2.112(M);
 - Grant any further relief the Court deems just, equitable, and consistent with the best interests of Lincoln David Watson.

Respectfully submitted,
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Date: April 24, 2025